

¶ 23.) Based on the information provided, the court will preliminarily approve a \$5,000 for the enhancement.

However, plaintiff also asserts numerous individual claims, in addition to the class and representative claims. Plaintiff must disclose to the court whether his individual claims were settled as well, and the terms of the settlement, along with a copy of the settlement agreement.

Plaintiff seeks approval of \$25,000 for settlement administration paid to Phoenix Settlement Administrators. The memorandum of points and authorities states that “Phoenix provided a ‘not to exceed’ quote \$25,000 to administer the settlement. (VPS Decl. ¶ 25.)” (MPA 12:18-22.) Yet counsel’s declaration states that Phoenix’s quote was \$10,000. (Sorrentino Decl., ¶ 25.) The quote from Phoenix is not provided, nor is there any indication that the parties sought bids from other settlement administrators (just the vague statement that the parties agreed on Phoenix “[a]fter researching multiple reputable settlement administrators ...” (Sorrentino Decl., ¶ 25), whatever that means. The moving papers are inconsistent and ambiguous in this regard.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 7-27-26
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Nationstar Mortgage LLC v. Eleuterio Villa***
Superior Court Case No. 24CECG01152

Hearing Date: July 28, 2026 (Dept. 502)

Motion: By Plaintiff for Summary Judgment, or in the Alternative,
Adjudication

**If oral argument is timely requested, it will be entertained on
Thursday, July 30, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To grant. (Code Civ. Proc., § 437c, subd. (c).) Plaintiff is to submit a proposed judgment consistent with this ruling within seven days of service of the minute order by the clerk.

Explanation:

This motion arises out of a complaint for cancellation of a written instrument and declaratory relief. A trial court shall grant summary judgment where there are no triable issues of material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) Where a plaintiff moves for summary judgment, the plaintiff has the burden to produce admissible evidence as to each element of a cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).)

Cancellation of Instrument

Civil Code section 3412 provides that where there is "a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable" a written instrument may be canceled. "To prevail on a claim to cancel an instrument, a plaintiff must prove (1) the instrument is void or voidable due to, for example, fraud; and (2) there is a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one's position." (*U.S. Bank National Assn. v. Naifeh* (2016) 1 Cal.App.5th 767, 778, as modified on denial of reh'g (Aug. 17, 2016).) It is appropriate to cancel a full reconveyance where such is recorded when the underlying debt has not been paid in full. (*Duley v. Westinghouse Electric Corp.* (1979) 97 Cal.App.3d 430, 432.)

Here, a full reconveyance was executed and recorded on July 15, 2010. (UMF No. 6.) Plaintiff has provided sufficient evidence that this reconveyance was wrongfully done because the underlying loan had not been satisfied and there was no authority for such. (UMF Nos. 7-10.) The reconveyance prevents plaintiff from realizing the value of its security interest in the subject property, causing pecuniary injury. (UMF Nos. 11-12.) Plaintiff has met its burden as to the cancellation of a written instrument.

Declaratory Relief

Persons interested in a written instrument may seek a declaration of their rights or duties with respect to property where there is an actual controversy relating to the legal rights and duties of the parties. (Code Civ. Proc., § 1060.) To obtain declaratory relief, a party must show facts of an actual controversy. (*Wolas v. Crescent Commercial Corp.* (1948) 86 Cal.App.2d 740, 745.)

Here, plaintiff has demonstrated a controversy exists as to real property. (UMF Nos. 6, 13-14.) Plaintiff has demonstrated its interest in the real property. (UMF Nos. 1-5.) Plaintiff has demonstrated that the Deed of Trust recorded June 30, 2009 supports its lien as senior in priority. (UMF Nos. 1-2, 12-21.) Plaintiff has demonstrated that declaratory relief is appropriate here to the effect that the Deed of Trust recorded June 30, 2009 has priority.

Plaintiff has met its burden. Defendants have not apposed this motion and therefore have not presented any evidence of any triable issues of fact. As such, the court grants the motion for summary judgment.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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